

before filing a [demurrer / motion to strike] the amended pleading.

(Emphasis added.)

Rodrigues and Re/Max have failed to show a compliant effort to meet and confer on the amended pleading which is the subject of the present motions. While their attorney declares that she met and conferred with counsel for the plaintiffs, a close reading of the declaration and the briefing demonstrates this effort was made prior to the amendment. This does not meet the statutory requirement that she meet and confer again before filing a the demurrer and motion to strike targeted at the amended complaint.

Additionally, the Declaration of Shannon B. Jones is not signed. "An unsigned paper shall be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party." (Code Civ. Proc., § 128.7 (a), emphasis added.) The declaration filed on April 24, 2026 is stricken.

This matter is continued so that the parties can engage in a good faith meet and confer process that complies with the above-mentioned statutes. Re/Max and Rodrigues shall file and serve a new declaration showing compliance with the meet and confer requirements by October 9th. If the parties reach an agreement about any of the matters raised in the motion, the declaration shall include a description of these matters.

13. 9:00 AM CASE NUMBER: C25-03739
CASE NAME: SCOTT MCCOY VS. EXACT HOME BUYERS, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**
FILED BY: RODRIGUES, DEREK
TENTATIVE RULING:

Please see Line 12.

14. 9:00 AM CASE NUMBER: MSC21-01379
CASE NAME: MOFFETT VS. SONIC WALNUT CREEK
***HEARING ON MOTION IN RE: POST-JUDGMENT ATTORNEY'S FEES AND COSTS/CONT'D FROM 8/24/2026 TO 9/18/2026 PER TR**
FILED BY: MOFFETT, JAMES
TENTATIVE RULING

The Court finds the costs described by the Plaintiff to be reasonable, as to the hourly rates charged, the number of hours expended and the lodestar multiplier. The Court grants the Plaintiff's motion for Post-Judgment Attorneys' Fees and Costs in the following amounts: **\$7,816 in post-judgment attorneys' fees** (representing \$7,899.00 minus \$83 for the cost of the revised writ of execution) and **\$544.77** in post-judgment costs. The total of **\$8,360.77** is due to Plaintiff's attorneys 30 days from the date of service of notice of entry of this order.

15. 9:00 AM CASE NUMBER: MSC21-02370

CASE NAME: MALIK VS. FIERRO

MOTION TO BE RELIEVED AS COUNSEL MOTION TO BE RELIEVED AS COUNSEL RE: SANJEET S.

GANJAM FILED 8/17/26 BY ANIL MALIK

FILED BY: MALIK, ANIL

TENTATIVE RULING:

The Motion to be Relieved as Counsel for Plaintiff and Cross-Defendant Anil Malik is granted. The Court will execute the proposed order lodged with the Court on August 18, 2026. The order will become effective upon service of the order upon the client.

16. 9:00 AM CASE NUMBER: MSC22-00300

CASE NAME: AZAMEY VS CARAPIA

HEARING ON SUMMARY MOTION SUMMARY ADJUDICATION - JAMES UNGER

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff and Cross-Defendant Mariam Azamey and Plaintiff James Unger (collectively, "Cross-Defendants")'s motion for summary adjudication. The Motion relates to Defendant and Cross-Complainant Pamela Parker ("Cross-Complainant")'s Cross Complaint for (1) trespass, (2) negligence, (3) intentional infliction of emotional distress, (4) negligent infliction of emotional distress, and (5) civil conspiracy. The Motion is unopposed.

As a threshold issue, the Court notes that there is a procedural defect with the Separate Statement. A separate statement seeking summary adjudication must state verbatim the noticed issues from the notice of motion at the beginning of each issue for summary adjudication. (See Calif. Rules Court, rule 3.1350, subd. (b); *Truong v. Glasser* (2010) 181 Cal.App.4th 102, 118.) Here, Cross-Defendant's Separate Statement is not organized by either cause of action or issue; instead, it has a single category of "Undisputed Material Facts in Support of Summary Adjudication." This does not comply with Rule of Court 3.1350(b).

The court's power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary, not mandatory. (See *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 523; cf. *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 315–316.)

In lieu of denying the motion based upon a defective separate statement in this case, the Court elects to treat the motion as one for summary judgment only.

For the following reasons, the Motion is **denied**.

Brief Factual Allegations and Procedural Background

This is a property dispute between neighbors regarding an easement. Plaintiffs' Property is the dominant tenement of a 20-foot-wide easement that lies 12.5 feet on the Carapia Property and 7.5